



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

September 28, 2021

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 201907279 regarding Police Officer Andrea Cicillini, Tax No. [REDACTED] (DADS No. 2020-22305), Police Officer Wilson Chan, Tax No. [REDACTED] (DADS No. 2020-22307), and Sergeant Robert Hyland, Tax No. [REDACTED] (DADS No. 2020-22308),

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter in its entirety and determined that Police Officers Cicillini and Chan, along with Sergeant Hyland, would benefit from training in connection with this matter, as opposed to a Schedule "B" Command Discipline.

In this matter, the officers and the sergeant removed the individual to the hospital for evaluation due to their independent beliefs that the individual was intoxicated and could present a danger to himself. The CCRB disagreed with the officers' and Sergeant Hyland's independent evaluations of the individual and whether the individual necessitated removal to the hospital.

The Police Commissioner believes that officers on the scene of an incident are usually in the best position to evaluate whether an individual may require removal to the hospital. However, in this instance, the officers and the sergeant did not articulate sufficient reasoning or evidence that the individual was intoxicated to the extent that he required forcible removal to the hospital. Thus, the officers and the sergeant would benefit from additional training in handling similar situations in the future.

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Therefore, the Police Commissioner determined that Police Officer Cicillini and Police Officer Chan, and Sergeant Hyland will receive Training from their Commanding Officer in Patrol Guide Procedure 221-13 (Mentally Ill or Emotionally Disturbed Persons).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', with a stylized flourish extending to the right.

Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office